

From : info@ethichawks.co.za
To : <jason.whyte@deney.co.za>
Cc : <Frances.Barker@deney.co.za>,<Olebogeng.Motlhaping@deney.co.za>
Subject : RE: Re: Formal Agenda Input for Round Table Meeting [IMAN-CPT_MATTERS.FID2264505]
Date : 18 Jun 2026 11:50

Dear Mr. Whyte and Ms. Barker,

I acknowledge receipt of your email dated 18 June 2026 your focus on my attempt to share the correct file and your request for documentation.

I respond as follows:

Your Request Is a Stalling Tactic

Your request for all my evidence, with a deadline of less than 24 hours, is not a genuine attempt to "assess my input." It is a litigation tactic designed to:

- **Stall** the settlement **process** while you buy more time;
- **Fish** for my evidence **without** providing **anything in return**;
- **Exhaust me** procedurally while your **client** continues to **delay**.

Settlement **negotiations** are not a **discovery exercise**. I am not obligated to **provide** my **evidence prematurely** while your client **offers nothing in return**.

I Have Been Transparent – Your Client Has Not

I have been **transparent throughout** this process:

- I **disclosed** the **existence** of the NPA/SCCU **escalation** on 28 May 2026;
- I provided my Agenda **Input** Document in full, **setting out** all material issues;
- I made a Calderbank offer a **massive discount** on my claim;

I confirmed that my statutory submissions are on hold pending a genuine engagement.

By contrast, your client has provided absolutely nothing in return:

- **No** proposed **date** for the round table meeting;
- **No** proposed **agenda**;
- **No confirmation** that representatives with full **decision-making authority** will attend;
- **No** substantive **response** to my Calderbank offer;
- **No transparency regarding your client's position on settlement**.

You requested transparency. I gave it. I now expect the same from your client.

You Have Been Abusing My Good Faith Since 4 June 2026

I agreed to **hold** my statutory **submissions pending** your client's **engagement**. Since **4 June 2026**, your client has:

- **Initiated** settlement **discussions without** any **follow-through**;
- **Repeatedly** stated they are "*taking instructions*" **without** providing any substantive **response**;
- **Failed** to propose a meeting **date** or **agenda**;
- **Missed** every **deadline** I set;
- **Now demanded my evidence** while **offering nothing in return**.

This is not **negotiation**. This is **attrition**. You are using my **good faith** to **exhaust me** procedurally while **your client stalls**.

Your Request for Documentation Is Premature

My Agenda Input Document is marked "*Without Prejudice Save as to Costs*." The **documentation** you request is **privileged** and forms part of confidential settlement communications. Providing it now would:

- **Defeat** the purpose of the "*without prejudice*" **protection**;
- **Prejudice** my **position**;
- Allow your client to **conduct pre-trial discovery without reciprocity**.

I will provide the **actuarial report and other relevant documentation at the appropriate stage**, when there is a **genuine settlement framework** and a signed confidentiality agreement in place. I will **not provide my evidence prematurely** while your **client** continues to **stall**.

My Deadlines Stand – Be Guided Accordingly.

I gave your client until **close** of business on **20 June 2026** to:

1. **Propose** a **date** for the round table **meeting**;
2. **Provide** their proposed **agenda** (at least 48 hours before the meeting);
3. **Confirm** that representatives with full **decision-making authority** will attend.

These deadlines are final. No further **extensions** will be **granted**.

If your client **fails** to **comply**, I will:

- **Conclude** that your client is **not genuinely committed to an amicable resolution**;
- **Withdraw** my Calderbank offer with **immediate effect**;
- **Resume** all **statutory submissions** and **procedural actions**;
- **Allow** the NPA/SCCU investigation to proceed to an **independent prosecution decision**.

I have been patient. I have been transparent. I have been reasonable. Your client has used every extension to delay.

The 20 June 2026 deadline is final. Be guided accordingly.

My rights remain fully reserved.

Yours faithfully,

Sr Wilbur William Matthee
RN | BTech General Nursing | Psychiatry | Midwifery | and Community Health | PGDip Health Services Management (NQF 8)
Founder – EthicHawks Forensic Governance & Compliance Consultancy
info@ethichawks.co.za | 069 635 1435
Developer – Wilbur Method™ Forensic Framework | PalCare Clinical Governance Platform
CI (SA) Compliance Practitioner (Associate) – CISA Pledge to the Code of Ethical and Professional Conduct
Compliance Institute of Southern Africa (CISA) | Membership Designation: CPrac(SA) – Pending Final Certification Modules
<https://www.ethichawks.co.za> | Cape Town, South Africa

Ethical Pledge Statement: While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules

--- On Thu, 18 Jun 2026 10:55:20 +0200 jason.whyte@deneys.co.za wrote ---

Dear Mr Matthee

We confirm receipt of your Agenda Input document as well as your three emails sent between 16h42 and 16h58, yesterday 18 June 2026. We confirm that we will direct same to our client for instructions.

However, for present purposes, and in order to assess your input, we would be grateful if you would urgently provide us with the following documentation that is referred to in your input document:

1. All documents lodged and received in terms of SAPS CAS 1954/3/2026, inclusive of the “comprehensive evidence bundle” sent to the National Director of Public Prosecutions (the **NDPP**) and Special Commercial Crime Unit (**SCCU**) as well as all correspondence sent and received in that regard.
2. Copies of all referrals made to the CCMA.
3. Copies of all complaints made to the JSE, CIPC, SAHRC, B-BBEE Commission, Council for Medial Schemes, Information Regulator and Department of Employment of Labour, including all covering correspondence and correspondence received from those regulators.
4. Copies of the complaint made to the Legal Practice Council.
5. Copies of the complaints made to the SANC, HPCSA and other professional bodies.

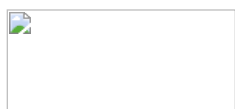
We trust that this documentation will be provided to us in the interests of transparency and in order for us to determine which disputes and complaints will be subject to a potential overarching settlement.

Kindly revert to us by close of business on 19 June 2026.

Kind regards

Jason Whyte | Director

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From: Wilbur Matthee <info@ethichawks.co.za>
Sent: 17 June 2026 4:58 pm
To: Jason Whyte <jason.whyte@deneys.co.za>
Cc: Frances Barker <Frances.Barker@deneys.co.za>; Olebogeng Motlhaping <Olebogeng.Motlhaping@deneys.co.za>
Subject: Re: Formal Agenda Input for Round Table Meeting
Importance: High

Dear Mr. Whyte and Ms. Barker,

Kindly find the Agenda Input Document attached.

Yours faithfully,

Sr Wilbur William Matthee
RN | BTech General Nursing | Psychiatry | Midwifery | and Community Health | PGDip Health Services Management (NQF 8)
Founder — EthicHawks Forensic Governance & Compliance Consultancy
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--- On Wed, 17 Jun 2026 16:41:16 +0200 info@ethichawks.co.za wrote ---

Dear Mr. Whyte and Ms. Barker,

Further to our recent correspondence, I attach a formal Agenda Input Document for the proposed round table meeting.

This document sets out the material developments affecting the dispute, including the independent NPA/SCCU escalation of 28 May 2026 (SAPS CAS 1954/3/2026), and proposes a comprehensive settlement framework for discussion.

I wish to address the criminal investigation directly.

In my correspondence of 13 June 2026, I formally requested that your client approach this matter with full transparency.

In your correspondence of 4 June 2026, you similarly requested that I approach this matter with "transparency" and "good faith".

In giving effect to both requests your request for my transparency, and my request for your transparency I consider it professionally necessary to place on record that:

Every minute that passes without finalising a private resolution accelerates the independent review by the NDPP and SCCU. These processes are entirely beyond my control. Once prosecution decisions are made, they cannot be undone by a private settlement.

I raise this not as a threat, but as a demonstration of the very transparency I have asked of you and you have asked of me.

I am ensuring that your client's Board and executive leadership are fully apprised of the escalating risk so that they can make informed decisions.

I now expect the same level of transparency from your client regarding their position on the settlement framework, their timeline for engagement, and their decision-making authority.

I also propose that all costs orders arising from the High Court proceedings be mutually withdrawn and dissolved as part of a comprehensive settlement, with each party bearing its own costs.

I confirm that my statutory submissions and procedural actions remain on hold pending this meeting, provided the following conditions are met:

1. A formal written agenda is circulated prior to the meeting;
2. Representatives with full decision-making authority are present;
3. All agreements are reduced to writing and signed on the day of the meeting.

Please confirm receipt and indicate:

- Whether your client accepts this Agenda Input Document;
- Whether any additional items should be added to the agenda;
- Available dates for the round table meeting (no later than Friday, 27 June 2026);
- Confirmation that representatives with full decision-making authority will attend.

My rights remain fully reserved.

Yours faithfully,

Sr Wilbur William Matthee

RN | BTech General Nursing | Psychiatry | Midwifery | and Community Health | PGDip Health Services Management (NQF 8)

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Ethical Pledge Statement: While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules, I pledge to adhere to the Code of Ethical and Professional Conduct of the Compliance Institute of Southern Africa (CISA).

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